

IN THE SENATE

SENATE BILL NO. 1309

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO JUVENILE CORRECTIONS; AMENDING CHAPTER 32, TITLE 31, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 31-3201K, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE DISTRIBUTION OF PAYMENTS IN CASES UNDER THE JUVENILE CORRECTIONS ACT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 32, Title 31, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 31-3201K, Idaho Code, and to read as follows:

31-3201K. DISTRIBUTION OF PAYMENTS IN CASES UNDER THE JUVENILE CORRECTIONS ACT. When ordered by the court to make one (1) of the following payments in a case filed under the juvenile corrections act, chapter 5, title 20, Idaho Code, the person so ordered shall make the payment to the clerk of the court in which the judgment was entered. The judgment shall be satisfied accordingly by entry in the electronic docket of the court, and the clerk of the court shall remit daily all such payments to the county auditor, who shall, at least monthly, distribute the payments received as required by statute. The distributions shall first completely satisfy the amounts due in the following order before distribution of payments for any other amounts owed to the court, and any payment applied to a category as provided in this section in which more than one (1) payment was ordered shall be distributed in proportion to the relative amounts of such ordered payments:

(1) Restitution to or making whole any victim who suffers an economic loss as a result of the juvenile offender's conduct paid pursuant to section 20-520(3), Idaho Code;

(2) Detention/probation training academy fee paid pursuant to section 20-520(1)(q), Idaho Code;

(3) Juvenile drug court or mental health court fee paid pursuant to section 31-3201E, Idaho Code;

(4) Juvenile pretrial supervision fee paid pursuant to section 20-516A, Idaho Code;

(5) County juvenile probation supervision fee paid pursuant to section 20-520(1)(s), Idaho Code;

(6) Court-ordered tests of breath or bodily fluids pursuant to section 19-2608, Idaho Code;

(7) Community service fee paid pursuant to section 20-520(1)(r), Idaho Code;

(8) Probationary contract violation assessment paid pursuant to section 20-522, Idaho Code;

(9) Detention costs paid pursuant to section 20-524(2), Idaho Code;

1 (10) Costs of support and treatment of a juvenile paid pursuant to sec-
2 tion 20-524(1), Idaho Code;

3 (11) Reimbursement of public defender costs paid pursuant to section
4 20-514(7), Idaho Code;

5 (12) Reimbursement for costs of toxicology testing paid pursuant to
6 section 37-2732C(g), Idaho Code;

7 (13) Reimbursement for costs incurred by law enforcement agencies in
8 investigating controlled substance violations pursuant to chapter 27, ti-
9 tle 37, Idaho Code, violations of the racketeering act pursuant to section
10 18-7804, Idaho Code, or money laundering and illegal investment provisions
11 of section 18-8201, Idaho Code, paid pursuant to 37-2732(k), Idaho Code;

12 (14) Reimbursement for costs paid by a county for psychosexual evalua-
13 tions paid pursuant to section 18-8318, Idaho Code; and

14 (15) Any other amounts paid pursuant to any statutory section not refer-
15 enced in this section.

16 SECTION 2. An emergency existing therefor, which emergency is hereby
17 declared to exist, this act shall be in full force and effect on and after
18 July 1, 2026.